

2017 P L C (C.S.) 220

[Lahore High Court]

Before Jawad Hassan, J

MUHAMMAD SOHAIL

Versus

CHAIRMAN NTS and others

Writ Petition No.38809 of 2016, decided on 9th December, 2016.

Punjab Civil Servants Act (VIII of 1974)---

---S. 4---Punjab Civil Servants (Appointment and Conditions of Services) Rules, 1974, R.3---Appointment---Change in recruitment policy---Judicial review---Scope---Petitioner/candidate in response to advertisement, applied for the post of ESE (Science and Math BPS-9)---Petitioner passed the 'NTS' test for the said post---Requisite qualification for the post was B.Sc. and F.Sc. (two science subjects)---Department again advertised and issued notification, wherein the candidates having studied Arts subject were also allowed to contest for the said post---Petitioner had sought setting aside of second notification, contending, that by issuance of second advertisement and introducing new recruitment policy, injustice and prejudice had been caused to him---Validity---Petitioner, in the present case, pursuant to the original advertisement, had passed NTS test, but mere publishing an advertisement in newspaper and passing the NTS test would not confer a vested right to a candidate; because the Government had the authority to amend or substitute an existing selection criteria by a new one for the betterment and in the larger interest of its citizens---Neither the competency of Government to change the Rules in public interest could be challenged, nor any candidate had vested right to be governed by any particular set of Rules---Government could make any alternation in the recruitment policy before finalization of the appointments---If the existing Rules were altered/changed, changed Rules would supersede the former---Conditions, qualifications and criteria prevailing at the time of appointment, were to be taken into consideration---Candidate had no vested right to claim to be governed by any particular set of Rules---Law makers, were fully competent to make Rules, alter qualification or criteria for a particular post; no one could make a grievance about the conditions and qualifications provided by the competent authority---Policy making, was the prerogative of Government---High Court, in exercise of constitutional jurisdiction, could not make or alter policy of the Government---If policy, itself was not supported by any law or Rules; or was based on discrimination, High Court had jurisdiction to examine the same---Government was within its right to prescribe any criteria permissible under the law---All the requirements for appointments must be strictly complied with---Order accordingly.

Dr. Omer Farooq Zain v. Bahauddin Zakariya University, Multan through Vice-Chancellor and 6 others 2008 PLC (C.S.) 1012; Imtiaz Ahmed and others v. Punjab Public Service Commission through Secretary, Lahore and others PLD 2006 SC 472; Mumtaz Ali

Bohio and 24 others v. Federal Public Service Commission through Chairman at Islamabad and another 2002 SCMR 772; Dr. Habibur Rahman v. The West Pakistan Public Service Commission, Lahore and 4 others PLD 1973 SC 144; Punjab Public Service Commission and another v. Mst. Aisha Nawaz and others 2011 SCMR 1602; Muhammad Bilal and 7 others v. Government of Khyber Pakhtunkhwa through Secretary Education and 5 others 2014 PLC (C.S.) 769 and Ibrahim Shah and 11 others v. Executive District Officer Schools and Literacy Department, District Mardan and 2 others 2008 PLC (C.S.) 1034 ref.

Ch. Zaheer Ahmad Farooq for Petitioner.

Mian Iftikhar-ur-Rasheed, AAG for Respondents.

ORDER

JAWAD HASSAN, J--- Through this constitutional petition, the Petitioner has sought setting aside of second notification issued by the Respondents, praying to declare the same as illegal.

2. Brief facts for the disposal of this constitutional petition are that the Petitioner in response to the advertisement appeared in the daily news paper applied for the post of ESE (Science and Math BPS-9) on merits. The Petitioner Passed the NTS for the said post of science and math. The requisite qualification for the said post is B.Sc and F.Sc (two science subjects). Subsequently, as contended by the counsel for the Petitioner, the Respondents with mala fide intention again made publication and issued notification wherein even the Arts Students were allowed to contest for the said post, despite the fact that the same was reserved for the students of F.Sc and B.Sc with two Science Subjects.

3. The Petitioner with the writ petition has only filed the Advertisement dated 14th August, 2016 (the "Advertisement") NTS Test Result dated 6 December, 2016 and the Addendum, which the Petitioner has referred as the Second Advertisement (the "Second Advertisement") and contended that the Second Advertisement is illegal, whimsical and unlawful, hence, liable to be set aside. The only prayer in the writ petition is to set aside the Second Amendment and to direct the Respondents to take interview of the qualified students according to the Advertisement.

4. The Petitioner has attempted to demonstrate that as a result of introduction of new recruitment policy, injustice and prejudice have been caused to him in an exercise which according to him was done arbitrarily.

5. Learned Law Officer has objected to the maintainability of this petition and argued that Government can make any policy and change any advertisement and courts cannot interfere in the government policy matters. The Learned Law Officer further argued that the Petitioner does not have a vested right to be appointed.

6. The Court has given its anxious consideration to the contentions of the learned counsel of the Petitioner and have perused the record.

7. Having heard the learned counsel for the petitioner and perusing the relevant record with counsel's valuable assistance, it is reflected that the Petitioner in pursuance of Advertisement appeared in daily newspaper, applied for the post of ESE (Science and Math) and qualified the same. The grievance voiced through the instant constitutional petition is that subsequently the Respondents with alleged mala fide intention issued publication, wherein even the Arts Students were allowed for the said post, although the same was reserved for the students of B.Sc. and F.Sc. with two science subjects.

8. The moot point in this writ is whether the Petitioner has suffered any irreparable loss or any of his vested rights has been violated due to the Addendum to the Advertisement/Second Advertisement. No doubt pursuant to the Advertisement the Petitioner passed the NTS test but mere publishing an advertisement in newspaper and submission of application forms and passing the NTS test will not confer a vested right to a candidate because the Government has the authority to amend or substitute an existing selection criteria by new one for the betterment and in the larger interest of its citizens which has so been done through the impugned selection criteria. It is to be noted that in the Addendum the Respondent has categorically published that "it is hereby advertised in the larger interest of the public". It is a well settled law that neither the competency of Government to change the rules, in public interest could be challenged nor any candidate has vested right to be governed by any particular set of Rules. The superior Court in Pakistan, in number of judgments has held that it is within the domain of the Government to make any alteration in the recruitment policy before finalization of the appointments. If the existing Rules are altered/changed the subsequent Rules will supersede the former. The vested rights originate from contracts, statutes, and by operation of law.

9. In the case titled Dr. Omer Farooq Zain v. Bahauddin Zakariya University, Multan through Vice-Chancellor and 6 others, 2008 PLC (C.S.) 1012 [Lahore], the honorable Court dismissed the Petition by holding at Para 9 that:

"9. ... It was the matter of policy to enhance the criteria. It is up to the policy-maker who is competent. It appears that the role of the Selection Board is that of recommendation and not a final. The factual controversy, to determine that his work published in the journals of National or International repute was not found up to the standard with mala fide and the petitioner intends to redress of grievance with this regard but this Court has no jurisdiction. It is also not within the jurisdiction to direct policy-maker to correct the policy according to the convenience of the candidates. The petitioner cannot be said to have been deprived of from any vested right. As observed above neither there is any recommendation of the Selection Board nor the policy-maker could be directed to change the policies. The enhanced criteria was within the jurisdiction of the competent authority prescribed."

10. Similarly, in the case of Imtiaz Ahmed and others v. Punjab Public Service Commission through Secretary, Lahore and others, PLD 2006 Supreme Court 472, it was held that conditions, qualifications and criteria prevailing at the time of appointment were to be taken into consideration and not what were in the past nor a candidate had a vested right to claim to be governed by any particular set of rules. Where rules relating to the subject had been modified, changed or altered, then the latter rules would prevail and would supersede the former. No vested right had accrued to the Petitioner under the old existing rules or by operation of law in view of

the amended rules. Law makers were fully competent to make rules, alter qualification or criteria for a particular post and no one could make a grievance about the conditions and qualifications provided by the competent authority or rule making authority for appointment and selection against the post, which were to be considered as it existed at the time of appointment or inviting applications from the candidates for such post, as the case may be. Candidates having failed once could not claim to be governed by the same set of Rules as no candidate had a vested right to be governed by any particular set of Rules.

11. Similarly, in the case of Mumtaz Ali Bohio and 24 others v. Federal Public Service Commission through Chairman at Islamabad and another, 2002 SCMR 772, it was held at Para 6 that:

"6. Neither the competency of respondent No.1 to change the rules in public interest could be challenged nor any candidate has vested right to be governed by any particular set of Rules. It is within the domain of respondent No.1 to make any alteration the recruitment policy before finalization of the appointments. If the rules are altered/changed, the latter rules will supersede the former. Vested rights originate from contracts, statutes, and by operation of law."

12. The honorable Supreme Court in the case of Sh. Muhammad Sadiq v. Federal Public Service Commission and others, 2013 SCMR 264, has held that the rules applicable and the conditions required to be specified are those which are in force on the date of appointment and not which were obtaining earlier i.e. at the time of inviting applications etc. Further, the honorable Court has relied on the Dr. Habibur Rahman v. The West Pakistan Public Service Commission, Lahore and 4 others, PLD 1973 SC 144, and has duly noted the following paras:

"While considering the question whether relevant rules/ instructions have been infringed in any manner in the matter of assessing the respective merit of the competing candidates, it has to be borne in mind that the reference must be to instructions current at the time the interviews are held by the public Service Commission. An attempt was made during the course of arguments at the Bar to assert that the instructions applicable should be those which were in force at the time the posts were advertised. This position cannot be accepted as it is difficult to hold that candidates applying for recruitment by interview have any vested right in the method of assessing their merit. Accordingly, we intend to examine this aspect of the case with reference to the instructions which were in force at the time the two interviews were held.

The law has since been well-established that the rules applicable and the conditions required to be satisfied on the date of appointment are to be taken into consideration and not what were the requirements at an earlier date."

13. It was held in the case of Punjab Public Service Commission and another v. Mst. Aisha Nawaz and others, 2011 SCMR 1602 that the policy of the Government cannot be interfered with unless it is shown that such policy was violative of the fundamental rights.

14. The Division Bench of Peshawar High Court, in the matter of Muhammad Bilal and 7 others v. Government of Khyber Pakhtunkhwa through Secretary Education and 5 others 2014

PLC (C.S.) 769 [Peshawar], has held following that:

"9. No doubt the petitioners had applied for their appointments against different posts pursuant to the advertisement referred above and the department had prepared a tentative merit lists of the eligible candidates but mere publishing an advertisement in newspaper and submission of application forms pursuant thereto will not confer a vested right on a candidate because the Government has the authority to amend or substitute an existing selection criteria by a new one for the betterment and in the larger interest of its citizen which has so been done through the impugned selection criteria.

10. In our estimation the already conducted recruitment process which was initiated pursuant to the ibid advertisement cannot be saved from the application of the impugned selection criteria. It has been held by the Hon'ble Supreme Court of Pakistan in a judgment reported in 1997 SCMR 1043 that:--

"It is evident from the above quoted extract that by now it is a well-established principle of law that the rules applicable and the conditions required to be specified are those which are in force on the date of appointment and not which were obtaining earlier i.e. at the time of inviting applications etc."

In another judgment reported in 1999 SCMR 1524, their Lordships held as under:--

"The law has since then been well established that the rules applicable and the conditions required to be satisfied on the date of appointment are to be taken into consideration and not what were the requirements at an earlier date."

11. The above judgments have been followed by the Hon'ble Supreme Court of Pakistan in a judgment reported in 2013 SCMR 264."

15. The Division Bench of Peshawar High Court in another judgment, titled Ibrahim Shah and 11 others v. Executive District Officer Schools and Literacy Department, District Mardan and 2 others, 2008 PLC (C.S.) 1034 [Peshawar], has held that the impugned modification in the rules had brought about only one change, namely, that the Union Council level vacancies were also to be filled up on open merit and had abolished the batch-wise/year-wise criteria. It was further held that petitioners were not excluded from selection, but they had to compete with others regardless of the year of their qualification. Impugned modification in the rules would be applicable to the petitioner and no legal right of the petitioners had been infringed by the impugned modification in the rules. Hence, the constitutional petition was dismissed.

16. Hence, in view of the above discussion, the Court is suffice to hold that policy making is the prerogative of Government and the High Court in exercise of Constitutional jurisdiction could not make or alter policy of the Government. Only if policy itself is not supported by any law or rule or was based on discrimination, then High Court has jurisdiction to examine the same. From the perusal of record, it is reveals that Petitioner is alleging to be only aggrieved of second advertisement and it is prerogative of Government to make any policy according to the betterment of public its own wishes and whims and no one can be allowed to interfere in same.

17. As noted above, the Respondent made the addendum for the larger interest of the public. Consequently, the contention of the petitioner that he has acquired a vested right to the recruitment through the advertisement is completely unwarranted by law. The Court is conscious that institutions in Pakistan have complete freedom to take decisions in their own matters and interference by the Courts in such matters would be the least desirable except for exceptional circumstances. Further, the Government is within its right to prescribe any criteria permissible under law and all the requirements for appointments must be strictly complied with.

18. Resultantly for what has been discussed above, the writ petition being devoid of merit is hereby dismissed in limine.

HBT/M-201/L

Petition dismissed.

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